

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 03/19/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00922
CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE
HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION
FILED BY: CAREPATROL FRANCHISE SYSTEMS, LLC
TENTATIVE RULING:

The Court continues the hearing on this motion to April 2, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C23-00932
CASE NAME: HONESTII LUMSEY VS. ANTIOCH EDEN RIVERTOWN, L.P.
*HEARING ON MINOR'S COMPROMISE RE: HONESTII AMARA LUMSEY
FILED BY: LUMSEY, HONESTII AMARA
TENTATIVE RULING:

Summary

Petitioner Erica Tiffany Thomas's Petition for Approval of Compromise of Minor Honestii Amara Lumsey's ("Minor") Claim ("Petition"), filed on September 18, 2025, is granted, as set forth below.

Background

On September 18, 2025, Petitioner Erica Tiffany Thomas, parent and guardian ad litem for her daughter, Honestii Amara Lumsey, filed the Petition through counsel Hazel Chang, to compromise the claim that Minor had against Antioch Eden Rivertown, L.P. related to an incident that occurred on July 26, 2022. In that accident, Minor sustained injuries including a broken leg, along with emotional trauma. Petitioner represents that Minor has received treatment at UCSF Benioff Children's Hospital. She has fully recovered and there are no permanent injuries. After some time in litigation, the Defendant offered settlement in the amount of \$100,000, of which \$31,497.67 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deductions are as follows: (1) \$1,700.73 for Medi-Cal liens; (2) \$26,801.60 costs incurred in litigation; and (3) \$40,000 for attorneys' fees. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

The Court continued this matter because it was concerned that the fee percentage of 40% is not consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). Counsel were given the option of either accepting a reduction of the fee to \$30,000 (30% of the recovery) or continuing the matter and submitting a supplemental brief addressing compliance with the CRC factors. Counsel submitted a supplemental declaration, which contained a small amount of additional information to comply with the California Rules of Court. Although the Court is still concerned that the initial 50% contingency fee was extraordinarily high, and the 40% reduction offered by the attorneys remains high but is lower, the Court appreciates that the number of hours, the costs incurred (which are being separately reimbursed), the complexity of the claim for substantial recovery given that the Minor has apparently fully healed, and the length of representation. After careful examination of the Petition, declarations, and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 18, 2025.

3. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
HEARING IN RE: JOINDER TO MOTION TO COMPEL ARBITRATION
FILED BY: HERNANDEZ, GILBERTO
TENTATIVE RULING:

This matter has been reassigned to Department 16 and continued to April 22, 2026.

4. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD OF DOCS**
AGAINST HCR IV HEALTHCARE
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

This motion was withdrawn by Plaintiffs.

5. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF**
DOCS AGAINST DEFS
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. bring this Motion (1) to Compel Further Responses to Requests for Production; (2) to Compel Production of Documents; (3) to Compel Verifications; and (4) for Monetary Sanctions Against Defendants Manor Care of Walnut Creek CA LLC (Manor Care), HCR Manor Care Services, LLC (HCR Manor Care), Promedica Employment Services, LLC (PES), and Promedica Health System, Inc. (PHS). All four Defendants filed oppositions.

Background

This is an elder abuse case with several defendants. This is one of originally seven—six after the withdrawal of one motion by Plaintiffs—discovery motions filed in this matter. The Court ruled the week prior on the first three to be heard.

On November 27, 2024, Plaintiffs served their RFPs on Defendants. At that time, all relevant Defendants were represented by a single law firm. After a negotiated extension, Defendants jointly served unverified responses to Plaintiffs' RFPs on February 7, 2025. Throughout 2025, Defendants continued to serve unverified supplemental responses. Plaintiffs sent meet and confer correspondence during that time. There is no evidence before the Court that Defendants at any time sent any response correspondence.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

On October 1, 2025, Plaintiffs filed the instant motion. On October 13, 2025, current counsel for HCR Manor Care and PHS substituted in. Manor Care and PES retained prior counsel. On March 6, 2026, PHS served verified amended responses to the Requests for Production of Documents. On March 6,

HCR Manor Care served amended responses to the Requests for Production of Documents, with a verification served on March 10. All four relevant Defendants filed oppositions on March 6, 2026. The Court is unaware of any additional meeting and conferring that took place between January 28 and today.

Analysis

Mooting of the Motion

HCR Manor Care and PHS claim that service of verified amended responses renders this Motion moot. These verified amended responses were served over one year after the initial responses, five months after new counsel substituted in, and either the day of or four days after the opposition to the Motion was filed. While the request for verifications is now a moot issue with respect to those two defendants, there remain several issues to be discussed. The verifications were untimely, rendering the substantive answers untimely. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (“Unsworn responses are tantamount to no responses at all.”).) “In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) The Court will address all ripe and relevant issues.

Timeliness of the Motion

PES and Manor Care claim that the motion is premature because Plaintiffs have never received verified responses. PES and Manor Care may not indefinitely prevent Plaintiffs from receiving discovery by failing to submit verifications and declaring any resulting motions premature. A reasonable time has come and gone, and verifications are significantly delinquent. The requirement that a Motion to Compel may only be filed after service of verified responses does not apply to this Motion.

Verifications

The Defendants’ responses must be verified. Code Civ. Pro. § 2031.250. Manor Care and PES remain unverified as of this date. HCR Manor Care and PHS are recently amended. Plaintiffs’ request for verified responses is therefore moot with respect to those two Defendants.

Waiver of Objections

Plaintiffs initially sought to compel verified answers without objection, arguing that the lack of timely verifications waived HCR’s right to assert objections. This is not correct. As Defendants indicate, where objections and substantive responses are served simultaneously, timely objections are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 (“Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.”). Plaintiffs appear to concede this point. The Court will not order new responses without *any* objections.

Responses

In response to RFP Nos. 2-5, 22, 25, 28, 30-40, 61, 63, 66, 69, 72, 75-80, 86-116, and 119-48, Defendants HCR Manor Care and PHS claim that they are unable to comply or to comply fully because some or all responsive documents are “lost,” “destroyed,” or “never existed.” In their brief, these Defendants explain that they never had these documents because they were too attenuated from the facility—HCR Manor Care as an “administrative support entity” and PHS as an “indirect parent company of the Facility.”

Code of Civil Procedure 2031.230 states:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

Defendants did not comply with this obligation. Given that they are or were affiliated with the facility and any entity that may have had these documents, it is not beyond their ability to attempt to answer *or to state why* they cannot answer. It remains unclear to the Court whether these companies indeed do not have *control* over any of the documents despite their lack of *possession or custody*, but if that is truly the case, at the minimum they must amend these answers to comply fully with their statutory discovery obligations.¹

Specific Objections/Responses

HCR Manor Care and PHS have amended their discovery responses and it is not clear whether they are still retaining certain objections or whether the following issues remain live therefore only with respect to Manor Care and PES. HCR Manor Care and PHS did not include any responses to these issues in their opposition brief, so it appears they concede the point. The Court will address the disputed objections.

RFP 19 – Evidence Code §§ 1151, 1157

In response to RFP No. 19, which requests “incident reports related to Decedent created during his residency at the subject Facility,” Defendants object that the request “seeks information that is not subject to discovery under Evidence Code § 1151 and 1157.”

Plaintiffs are correct that Evidence Code section 1151 relates to admissibility, not discovery. (*Bank of*

¹ Plaintiffs also argue that “Defendants do not explain why their sale of the Facility would cause documents predating the sale and responsive to Nos. 3, 4, 31, 35, 36, 39, 87, 90, and 91 to become lost or destroyed, particularly when Defendants produced documents that predate the sale in response to Nos. 3, 4, 35, 37, 39, 87, 90, and 96.” This is a subsidiary question to the one immediately above and only is relevant if there *was* control over these documents.

the Orient v. Superior Court (1977) 67 Cal. App. 3d 588, 598-599 (“[T]he section is a prohibition on the admissibility of evidence at trial. It does not purport to limit the scope of discovery.”).)

The Court received no argument from any Defendant regarding how the requested documents are not subject to discovery or fit within the narrow protection of Evidence Code section 1157. (*Matchett v. Superior Court* (1974) 40 Cal.App.3d 623, 627.) Responsive relevant documents must be produced.

RFP Nos. 27, 28, 30, 31, and 40 – Civil Code § 3295

RFP Nos. 27, 28, 30, 31, and 40 seek various contracts with third parties, including “management agreements” for the Facility, contracts for consulting services to patients, contracts with nurse staffing agencies, contracts between the Facility and ancillary service providers, and corporate integrity agreements entered into on behalf of the subject facility with the government. Defendants objected that the requests seek documents “protected from discovery under Civil Code § 3295.” Civil Code section 3295 protects defendants from discovery relating to punitive damages (Civ. Code § 3294) on “[t]he profits the defendant has gained by virtue of the wrongful course of conduct of the nature and type shown by the evidence” and “[t]he financial condition of the defendant” prior to plaintiff producing evidence of a prima facie case of liability for damages. That is not the aim of the discovery requests at issue here. Responsive relevant documents must be produced.

RFP 37

HCR Manor Care and PHS discuss RFP No. 37, which was not identified in Plaintiffs’ MPA but was addressed in the Separate Statement. At this point, it appears board minutes were produced and Defendants seek to claw them back. The Court does not have before it a procedurally appropriate vehicle for that request. So while it will not compel additional production on this request, it will also take no different further action.

RFP Nos. 27, 28, 30, 31, and 40 -- Privacy Objection.

Defendants raise a privacy objection in response to RFP Nos. 27, 28, 30, 31, and 40, which seek agreements between Defendants and other business 16 entities and the government. There is no support provided in any of Defendants’ briefing for such an assertion.

RFP Nos. 2-5, 19, 22, 25-28, 30-40, 61, 63, 66, 69, 72, 75-80, 86-116, and 119-48 –Boilerplate Objections.

Plaintiffs also complain of boilerplate objections. Although all parties are aware of the disfavored status of boilerplate and misplaced objections, it is not clear to the Court that any documents have actually been withheld on the basis of these objections, so there is nothing for the Court to do at this point. Any supplemental responses must fully comply with section 2031.240(b).

Supplementing Answers

By natural function of Defendants HCR Manor Care and PHS serving amended responses contemporaneously with their oppositions to this motion, there are now new issues that Plaintiffs have addressed in their reply. To the best of the Court’s understanding, this arises because the prior unverified responses were joint responses with Manor Care and PES, and the new separate responses

are served by each separate entity. In the course of that amendment, HCR Manor Care and PHS have asserted new objections (which will be addressed immediately below) and provided *fewer* responses than previously, claiming that they are entities without the relevant documents held by the subsidiaries. While Plaintiffs cannot seek remedy for Manor Care’s non-compliance with its verification obligations by insisting that an entity without knowledge provide documents it does not have, it is also true that Defendants cannot pretend to lack documents simply because a subsidiary is in actual possession of those documents. What is not clear to the Court at this stage is where the answers to each of these questions lies with respect to various types of information. In other words, there are certainly areas where HCR Manor Care and PHS plausibly cannot respond to RFPs, but there are also areas where—by way of contracts, statutory obligations, or corporate structure—HCR Manor Care and PHS *do* have possession, custody, or *control* of responsive documents. At this point, the breadth of the dispute is far too wide for the Court to address it piece by piece. Moreover, it does appear that Plaintiffs have been attempting to take depositions that would address corporate structure and responsibility since August 2025 and have a motion set for April 2, 2026 on that very matter. Defendants’ failure to provide knowledgeable deposition witnesses has prolonged and stymied this area of discovery. Defendants must provide relevant documents in their possession, custody, or control.

Newly Asserted Objections by PHS and HCR Manor Care

Finally, Defendants HCR Manor Care and PHS appear to assert new objections in their amended responses. They have provided no authority for them to do so at this belated stage. It is again, however, not clear whether these objections serve as the basis for any withheld documents. To the extent they do, absent some compelling showing from HCR Manor Care and PHS, they have been waived.

Delinquent Production

Plaintiffs also seek documents that were promised in response to RFP Nos. 3, 28, 38, and 118. After change in counsel and amendments by HCR Manor Care and PHS, it now appears that those Defendants claim not to have any of the documents responsive to these requests—with the exception of RFP NO. 38 (their respective Articles of Incorporation), which they state they will produce. This issue was addressed above. The issue remains live for PES and Manor Care.

RFP No. 3 seeks the “audit trail” for electronic documents produced in response to RFP No. 1, which in turn sought the decedent Kenneth Cannon’s “certified legal records.” Plaintiffs state that Defendants did not produce any documents from 2024. There is no justification given for this failure, and the documents must be produced.

RFP No. 28 seeks written agreements between the responding party and “any individual or entity providing consulting services to patients” of the facility. Defendants did not produce any written agreements that included PES or PHS. According to Defendants’ filings, it would appear that PHS did not have such written agreements. There is no response regarding PES in any of the briefing; relevant responsive documents must be produced.

RFP No. 38 seeks the responding party’s Articles of Incorporation. Plaintiffs report that Defendant

Manor Care failed to comply. Those documents must be produced.

RFP No. 96 seeks “Custom Time Detail Reports for employees working at the SUBJECT FACILITY from July 14, 2019 until July 14, 2023.” Manor Care only produced responsive documents for the brief period decedent Kenneth Cannon was at the facility. Absent a compelling reason for restricting this production—and none was offered—Manor Care must supplement the production to meet the request.

RFP No. 118 seeks “all PEPPER Reports prepared on behalf of the SUBJECT FACILITY from July 14, 2019 to July 14, 2023.” Plaintiffs state that Defendants only produced PEPPER Reports for a portion of the time. There is no justification for the failure to produce the entire period and responsive relevant documents must be produced.

In response to RFP No. 96, Defendant ManorCare of Walnut Creek CA, LLC only produced documents from the precise period during which Kenneth was a resident at the Facility. There is no justification for the failure to produce the entire period and responsive relevant documents must be produced.

Finally, Plaintiff complain that “Defendants produced documents in response to RFP Nos. 3, 4, and 100 that are not in their native Excel format and are practically unusable in the produced PDF format.” “Unless the parties otherwise agree or the court otherwise orders,” a “responding party shall produce the information in the form or forms in which it is ordinarily maintained or in a form that is reasonably usable.” CCP § 2031.280(d)(1). PHS and HCR Manor Care state that they do not have such documents. Any Defendant who has *access* to the relevant documents in their native format must produce them.

Sanctions

Under Code of Civil Procedure section 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Section 2023.020 states that the Court “**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” Additionally, section 2031.300 provides that the Court “**shall** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

One of the basic purposes for imposing sanctions is to compel disclosure of discoverable information. See, e.g., *Marriage of Economou* (1990) 224 Cal.App.3d 1466, 1475 (court’s discretion to impose sanctions “must be exercised in a manner consistent with the basic purposes of such sanctions: to compel disclosure of discoverable information”); *Kaplan v Eldorado Ins. Co.* (1976) 55 Cal.App. 3d 587, 591 (discovery sanctions enable party “to obtain evidence in the control of his adversary in order to further the efficient, economical disposition of cases according to right and justice on the merits”).

In keeping with this purpose, the proposed sanction should be “suitable and necessary” to enable the requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

The Court finds that all four Defendants have been derelict in their discovery obligations, but to varying degrees and with varying involvement of counsel. Notably absent from the thousands of pages before the Court is any representation that *at any time*, any of the counsel for any of the Defendants met or conferred with Plaintiffs’ counsel. Service of amended responses *may* cure issues and moot the need for further meeting and conferring, but given the record before the Court, that does not appear to have been the case and it was counsel’s obligation to follow up. Sanctions shall be awarded as follows:

- (1) From Manor Care and PES, jointly with counsel Petrullo, APC: \$4,000
- (2) From HCR Manor Care and PHS and current counsel Buchanan Ingersoll & Rooney: \$2,565.
This particular sanction is stayed and will not be imposed *if* counsel for these Defendants, in good faith, participates in further meeting and conferring to resolve the issues raised above that are not wholly resolved by this order **in person at a location of Plaintiffs’ counsel’s choosing**.

6. 9:00 AM CASE NUMBER: C24-01854

CASE NAME: REGINALD CANNON VS. MELISSA KATZ

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS AGAINST DEFS**

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. bring this Motion (1) to Compel Further Responses to Special Interrogatories; (2) to Compel Verifications; and (3) for Monetary Sanctions Against Defendants Manor Care of Walnut Creek CA LLC (Manor Care), HCR Manor Care Services, LLC (HCR Manor Care), Promedica Employment Services, LLC (PES), and Promedica Health System, Inc. (PHS). All four Defendants filed oppositions.

Background

This is an elder abuse case with several defendants. This is one of originally seven—six after the withdrawal of one motion by Plaintiffs—discovery motions filed in this matter. The Court ruled the week prior on the first three to be heard.

On December 5, 2024, Plaintiffs served their Special Interrogatories, Set 1 on Defendants. At that

time, all relevant Defendants were represented by a single law firm. After a negotiated extension, Defendants served unverified responses to Plaintiffs' Special Interrogatories ("SROGs") Nos. 1-86 and 88-91 on February 7, 2025.² The parties met and conferred, and Defendants did not serve verifications. There is no evidence before the Court that Defendants at any time sent any response correspondence.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

On October 1, 2025, Plaintiffs filed the instant motion. On October 13, 2025, current counsel for HCR Manor Care and PHS substituted in. Manor Care and PES retained prior counsel. On March 3, 2026, PHS and HCR Manor Care served verified amended responses to the Requests for Production of Documents. All four relevant Defendants filed oppositions on March 6, 2026. The Court is unaware of any additional meeting and conferring that took place between January 28 and today.

Analysis

Mooting of the Motion

HCR Manor Care and PHS claim that service of verified amended responses renders this Motion moot. These verified amended responses were served over one year after the initial responses, five months after new counsel substituted in, and three days before the opposition to the Motion was filed. The verifications were untimely, rendering the substantive answers untimely. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 ("Unsworn responses are tantamount to no responses at all.")) "In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) The Motion has been largely mooted with respect to PHS and HCR Manor Care, as they have served verified, amended responses.

Timeliness of the Motion

PES and Manor Care claim that the motion is premature because Plaintiffs have never received verified responses. PES and Manor Care may not indefinitely prevent Plaintiffs from receiving discovery by failing to submit verifications and declaring any resulting motions premature. A reasonable time has come and gone, and verifications are significantly delinquent. Defendant's citation to section 2031.300 is inapplicable to a motion relating to interrogatory responses. The requirement that a Motion to Compel may only be filed after service of verified responses does not

² Plaintiffs claim that Defendants failed to answer SROG 86. In fact, it would appear that they failed to answer SROG 87, not 86.

apply to this Motion.

Verifications

The Defendants' responses must be verified. Code Civ. Pro. § 2030.250. Manor Care and PES remain unverified as of this date. HCR Manor Care and PHS are recently amended. Plaintiffs' request for verified responses is therefore moot with respect to those two Defendants.

SROGs 86 and 87

Initially, the remaining issue related to SROG Nos. 86 and 87. SROG 86 seeks "each and every physical limitation [Kenneth] had immediately before he was admitted into" the subject facility, while SROG No. 87 seeks "each and every mental and/or cognitive limitation [Kenneth] had immediately before he was admitted into" the subject facility.

It's clear from the responses that Defendants initially erroneously copied SROG 86 to be word-for-word identical to SROG 87.³ HCR Manor Care and PHS have since corrected this error and responded to all requests.⁴

PES and Manor Care must answer SROG No. 87.

Supplementing Answers

By natural function of Defendants HCR Manor Care and PHS serving amended responses contemporaneously with their oppositions to this motion, there are now new issues that Plaintiffs have addressed in their reply. To the best of the Court's understanding, this arises because the prior unverified responses were joint responses with Manor Care and PES, and the new separate responses are served by each separate entity. In the course of that amendment, HCR Manor Care and PHS have asserted new objections (which will be addressed immediately below) and provided *fewer* answers than previously, claiming that they are entities without the relevant information held by the subsidiaries. While Plaintiffs cannot seek remedy for Manor Care's non-compliance with its verification obligations by insisting that an entity *without* knowledge respond to discovery, it is also true that Defendants cannot pretend to lack knowledge simply because a subsidiary holds that knowledge closer.

What is not clear to the Court at this stage is where the answers to each of these questions lies with respect to various types of information. In other words, there are certainly areas where HCR Manor Care and PHS plausibly cannot respond to SROGs, but there are also areas where—by way of contracts, statutory obligations, or corporate structure—HCR Manor Care and PHS *do* have possession, custody, or *control* of information responsive to SROGs. As noted above, at this point, the breadth of the dispute is far too wide for the Court to address it piece by piece. Moreover, it does appear that Plaintiffs have been attempting to take depositions that would address corporate

³ This is apparently such an easy mistake to make, that Plaintiffs did the same thing in their *brief*, although not in their Separate Statement.

⁴ Plaintiffs now take issue with these Defendants' supplemental responses, which the Court addresses immediately below.

structure and responsibility since August 2025 and have a motion set for April 2, 2026 on that very matter. Defendants' failure to provide knowledgeable deposition witnesses has prolonged and stymied this area of discovery. Defendants must provide relevant documents in their possession, custody, or control.

Objections

Waiver of Objections

Plaintiffs initially sought to compel verified answers without objection, arguing that the lack of timely verifications waived HCR's right to assert objections. This is not correct. As Defendants indicate, where objections and substantive responses are served simultaneously, timely objections are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 ("Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.")). Plaintiffs appear to concede this point. The Court will not order new responses without *any* objections.

Newly Asserted Objections by PHS and HCR Manor Care

Finally, Defendants HCR Manor Care and PHS appear to assert new objections in their amended responses. They have provided no authority for them to do so at this belated stage. It is again, however, not clear whether these objections serve as the basis for any withheld documents. To the extent they do, absent some compelling showing from HCR Manor Care and PHS, they have been waived.

Sanctions

Under Code of Civil Procedure section 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally. Section 2023.020 states that the Court "**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." Additionally, section 2030.300 provides that the Court "**shall** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

One of the basic purposes for imposing sanctions is to compel disclosure of discoverable information. See, e.g., *Marriage of Economou* (1990) 224 Cal.App.3d 1466, 1475 (court's discretion to impose sanctions "must be exercised in a manner consistent with the basic purposes of such sanctions: to compel disclosure of discoverable information"); *Kaplan v Eldorado Ins. Co.* (1976) 55 Cal.App. 3d 587, 591 (discovery sanctions enable party "to obtain evidence in the control of his adversary in order to further the efficient, economical disposition of cases according to right and justice on the merits").

In keeping with this purpose, the proposed sanction should be "suitable and necessary" to enable the

requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

Notably absent from the thousands of pages before the Court is any representation that *at any time*, any of the counsel for any of the Defendants met or conferred with Plaintiffs’ counsel. Service of amended responses *may* cure issues and moot the need for further meeting and conferring, but given the record before the Court, that does not appear to have been the case and it was counsel’s obligation to follow up. Sanctions shall be awarded as follows:

- (1) From Manor Care and PES, jointly with counsel Petrullo, APC: \$4,000
- (2) From HCR Manor Care and PHS and current counsel Buchanan Ingersoll & Rooney: \$2,565.
This particular sanction is stayed and will not be imposed *if* counsel for these Defendants, in good faith, participates in further meeting and conferring to resolve the issues raised that are not wholly resolved by this order above **in person at a location of Plaintiffs’ counsel’s choosing.**

7. 9:00 AM CASE NUMBER: C24-02439

CASE NAME: SHERMAN KING VS. AUGUSTINE REDD

***HEARING ON MOTION IN RE: SANCTIONS**

FILED BY: KING, SHERMAN

TENTATIVE RULING:

Plaintiff Sherman King, in pro per, brings this Motion for Sanctions pursuant to Code Civil Procedure section 128.7, alleging that counsel for Defendants Augustine Redd and Darnell Redd made false statements. It is unclear the pleading to which he refers, but it appears to be the Response to the Order to Show Cause filed August 18, 2025. Defendants have responded with an extremely brief filing.

“Section 128.7 requires that all pleadings filed with the court be signed by an attorney of a represented party or, if the party is not represented by counsel, by the party. (§ 128.7, subd. (a).) The signing of a filed pleading constitutes a certification by the person signing it that after a reasonable inquiry, the pleading (1) is not being presented for an improper purpose; (2) contains positions that are not frivolous; (3) alleges factual matter having evidentiary support; and (4) contains denials of factual allegations having evidentiary support. (*Id.*, subd. (b).) The court, after proper statutory notice, may impose sanctions upon the attorneys, law firms, or parties who have improperly certified a pleading in violation of the statute. (*Id.*, subd. (c).)

Plaintiff King asserts that Counsel Lucas “Lied to the court that he made an effort to resolve this case with me.” He also appears to allege dishonesty in court proceedings outside the answer where Counsel Lucas “blam[ed him] for [Defendants’] attorney not showing up,” stating that “work that [Plaintiff King] performed was done ten years ago,” and further stating “that [Plaintiff King] was estranged from” Defendant Redd.

The timing for a motion under section 128.7 requires that the motion be served, but not filed for at least 21 days to allow the other party to correct their conduct. If the conduct is not changed or the offending motion withdrawn after 21 days then the party requesting sanctions may file their motion. (Code of Civil Procedure section 128.7(c)(1); *Barnes v. Department of Corrections* (1999) 74 Cal.App.4th 126, 130.) Here, there is no indication of when Plaintiff King served the motion, but it was filed October 6, 2025. There is therefore no indication Plaintiff complied with the procedural requirements of section 128.7.

Moreover, Plaintiff King has filed a “Declaration” but it contains no actual facts. It appears to be a template that Plaintiff King completely failed to update. That would be less of an issue if it contained *any* facts relevant to the motion for sanctions—i.e. statements under penalty of perjury demonstrating that Counsel Lucas did, indeed, mislead the Court in any material way. Given that there is no competent evidence that Counsel Lucas has violated section 128.7(b), this Motion is **denied**.

8. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
HEARING ON DEMURRER TO: COMPLAINT OR IN ALT JUDGMENT ON THE PLEADINGS
FILED BY: EMINENT CAPITAL INVESTMENTS LLC
TENTATIVE RULING:

Before the Court is a demurrer filed by defendants, SV Quick Capital Corporation and Eminent Capital Investments, LLC. The proofs of service state the complaint was personally served on defendants in May of 2025. In October of 2025, defendants responded by filing the present demurrer.

Code of Civil Procedure section 430.41 sets forth the meet and confer requirements for a demurrer. Subdivision (a) states that, before filing a demurrer, “the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

Subdivision (a)(2) addresses timing: It requires the meet and confer happen “at least 5 days before the date the responsive pleading is due,” but also allows for a demurring party to file a declaration in order to unilaterally obtain additional time to meet and confer. Here, defendants failed to comply with the timing requirements as no meet and confer efforts were initiated until several months later.

Still, plaintiff did not take any defaults and the Court will consider the demurrer (which is not properly a “motion for judgment on the pleadings,” despite the identical legal standard, because no answer has been filed at this time).

Notwithstanding the Court's willingness to consider the demurrer, the good faith meet and confer requirement outlined in Code of Civil Procedure section 430.41 has not been met.

With the moving papers, a demurring party must file and serve a declaration stating either:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

(Code Civ. Proc., § 430.41 (a)(3).)

Defendant here filed a Declaration of Terance Orme, which attaches communications with plaintiff's counsel. From the communications, it appears that plaintiff's counsel did respond to Orme's meet and confer request. Specifically, counsel stated that she expected to be ready to meet and confer on "Tuesday," and asked if that worked for Orme. Orme then apparently did not follow up. Parties thus did not meet and confer. Nor did the party who filed the pleading fail to respond to the meet and confer request. Accordingly, defendants' declaration concerning such meet and confer is deficient and defendants have not complied with the statutory requirements.

While "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer" (Code Civ. Proc., § 430.41 (a)(4)), the Court elects to continue the hearing to allow parties to carry out their obligations in this respect.

The demurrer hearing is continued to April 9, 2026 in this Department at 9:00 a.m. By March 26, 2026, parties shall meet and confer by one of the methods set forth in the above statute. By April 2, 2026, defendants shall file a declaration outlining any such efforts, as well as describing agreements reached, if any.

9. 9:00 AM CASE NUMBER: C25-02081

CASE NAME: JILL REBIEJO VS. FAYE ABBES

***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION AND APPOINTMENT OF RECEIVER**

FILED BY: ABBES, FAYE KRISTAN

TENTATIVE RULING:

Before the Court is Defendant and Cross-Complainants Faye Abbes, Ronald Abbes, and Kevin Lettire (collectively, "Defendants" or "Cross-Complainants")'s motion for preliminary injunction and appointment of receiver (the "Motion"). The Motion is opposed by Plaintiff and Cross-Defendant Jill Rebiejo ("Cross-Defendant" or "Rebiejo").

For the following reasons, the Motion is **denied**.

Brief Factual and Procedural Background

This is a business dispute related to the ownership and operation of the restaurant Pete's Brass Rail & Car Wash. Plaintiff has a 50% ownership interest in Pete's 3 G LLC along with Defendant Faye Abbes. The LLC owns Pete's Brass Rail & Car Wash. Plaintiff manages both the LLC and the Restaurant.

The parties dispute whether a Board of Directors was later formed and whether Faye was later added as a second manager of the LLC. Cross-Complainant Faye Abbes testifies that “In or about April of 2023, with the SBA loan no longer a consideration, we decided to revise Exhibit B to the Operating Agreement ... to show both myself and Jill as ‘Manager(s) of the company.’” (Abbes Decl. at ¶ 7.) She also testifies that “we agreed to establish a Board of Directors to manage operation of the LLC and Restaurant, along with executive officers to execute the Board’s decisions.” (*Id.* at ¶ 8.)

Plaintiff and Cross-Defendant Rebiejo, however, testifies that “Pete’s has no board members” and “its Operating Agreement does not allow for the appointment of board members.” (Rebiejo Decl. at ¶ 7.) She further testifies that “[t]here was no meeting held where Faye and I were present to discuss or approve this, and I never signed anything to create a ‘Board of Directors’ or appoint Faye as a Manager of Pete’s.” (*Id.* at ¶ 8.)

On July 21, 2025, Rebiejo filed a derivative complaint for (1) breach of fiduciary duty (derivative); (2) declaratory relief (derivative); (3) conversion; (4) breach of fiduciary duty (individual); and (5) declaratory relief (individual). By her complaint, she alleges that Defendant Faye Abbes and her husband Ronald Abbes have “ ‘comped’ themselves and their friends at least \$30,000 in free meals and drinks,” have used company funds to pay their friend and their children for “supposed services provided to the company,” have billed personal expenses to the company, and “have been stealing Pete’s gift cards for themselves, and using those as personal gifts to friends and to benefit Ron’s business, all without company approval.” (Complaint at ¶¶ 13, 14.)

On October 13, 2025 Defendant Faye Abbes filed a Cross-Complaint for (1) breach of contract; (2) breach of fiduciary duty; (3) breach of implied covenant of good faith and fair dealing; (4) intentional misrepresentation; (5) fraudulent concealment; (6) negligent misrepresentation; (7) conversion; (8) accounting; and (9) access to corporate records. In her Cross-Complaint, Cross-Complainant Abbes contends that Plaintiff and Cross-Defendant Rebiejo has grossly mismanaged Pete’s leading to citations from the Health Department, a fine from the California Alcoholic Beverage Commission, as well as other alleged management transgressions. (Cross-Complaint at ¶¶ 18, 19.)

Defendants and Cross-Complainants filed the instant motion on January 16, 2026 and were assigned a hearing date of July 16, 2026. The Court granted an *ex parte* motion to advance the hearing date and set a compressed briefing schedule on February 5, 2026.

Analysis

Receiver

The principal source of authority to appoint a receiver is Code of Civil Procedure section 564. Defendant and Cross-Complainants’ application is based on both (b)(1) and (b)(9). Subsection (b) provides that “[a] receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: ... (1) In an action by a vendor to vacate a fraudulent purchase of property, or by a creditor to subject any property or fund to the creditor’s claim, or between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost, removed, or materially injured. ... [and] (9) In all other cases where necessary to

preserve the property or rights of any party.”

Receivership is an equitable remedy. The appointment of a receiver rests in a large measure in the sound discretion of the court. “However, such power is not entirely uncontrolled and must be exercised with due regard to the facts presented in each particular case.” (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.)

Courts are generally reluctant to grant a receivership prior to trial, as a receivership is a harsh, time-consuming, and expensive remedy. The appointment of a receiver is a drastic remedy to be employed only in exceptional circumstances. (*City and County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744.) Courts usually prefer to regulate conduct of a business by injunctions, resorting to a receiver only when it is clear that an injunction will not work. “Ordinarily, if there is any other remedy, less severe in its results, which will adequately protect the rights of the parties, a court should not take property out of the hands of its owners. [Citations.]” (*Golden State Glass Corp. v. Superior Court of Los Angeles County* (1939) 13 Cal.2d 384, 393.)

The moving party has the burden of proving, by a preponderance of evidence, that appointment of a receiver is warranted. (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal. App. 2d 869, 874). The Court must consider the availability and efficacy of other remedies in determining whether to employ the extraordinary remedy of a receivership. (*Alhambra-etc. Mines v. Alhambra G. Mine* (1953) 116 Cal. App. 2d 869, 873.)

A party requesting the appointment of a receiver must include facts establishing one of the statutory grounds for such appointment. (*Miller v. Oliver* (1917) 174 Cal. 407, 410.) “In order for plaintiff to invoke the power of the court under subsection 1 it was necessary for it to show its joint interest with defendant in the property; that the same was in danger of being lost, removed or materially injured, and that plaintiff's right to possession was probable.” (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.) Plaintiff has the burden here by a preponderance of the evidence. (*Id.* at 874.) Finally, appointing a receiver is a drastic remedy, which will ordinarily not be used if any less severe remedy is available. (*Id.* at 873.)

Cross-Complainants argue that “given the persistent and intense conflicts between Faye and Jill in managing Pete’s, this case is perfectly suited for the appointment of a receiver.” (Motion at 14:23-24.) While it is clear from the parties’ declarations that there is an active dispute with respect to Restaurant management, Defendants and Cross-Complainants have not shown that “the property or fund is in danger of being lost, removed, or materially injured” under section 564(b)(1) or that a receiver is necessary to preserve the property or their rights under subsection (b)(2).

Here, Plaintiff Rebiejo has rebutted all of the factual allegations of Defendant Abbes’ declaration with her own declaration testimony and evidence. (Opposition at § II(E).) For example, with respect to the citation from the Alcoholic Beverage Commission for serving alcohol to a minor, Plaintiff testifies that she learned about the fine at a meeting and that she paid the reduced fine immediately. (Rebiejo Decl. at ¶ 16.) She further testifies that “[t]he Restaurant’s liquor license was never threatened or lost.” (*Id.*)

Defendants and Cross-Complainants have not made a sufficient showing that Pete’s 3 G LLC is in danger of losing money or being materially injured as a result of Plaintiff’s management of the

Restaurant. Although Defendants and Plaintiff clearly have conflicting management philosophies, that is not a sufficient basis to appoint a receiver. Defendants have not demonstrated by a preponderance of the evidence that Plaintiff has taken a course of action that places the LLC's solvency at risk.

The motion to appoint a receiver is **denied**.

Injunction

Defendants and Cross-Complainants seek a preliminary injunction "to enjoin plaintiff Jill Rebiejo from continuing to work at Pete's Brass Rail & Car Wash Restaurant and from paying herself for working at the Restaurant[.]" (Notice of Motion at ¶ 2:2-3.) Defendants also seek relief from Rebiejo that she "immediately provide defendants with full access to the Restaurant's management systems, including all necessary passwords or other information needed to access the systems, including but not limited to QuickBooks, ADP, SwipeClock and Hot Schedules" as well as relief that she "immediately turn over [to] the defendants her keys or access cards to the Restaurant and all over [sic] supplies and equipment necessary to operate the Restaurant." (Proposed Order Granting Motion for Preliminary Injunction at 2:27-3:3.)

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) "An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction. [Citation.]" (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) The purpose of the preliminary injunction, theoretically, is to preserve the status quo and prevent irreparable harm pending trial on the merits. (*White v. Davis* (2003) 30 Cal.4th 528, 554.)

In deciding whether to issue a preliminary injunction, a court must weigh two "interrelated" factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal. 4th 668, 677-678.) The greater the showing on one factor, the less must be shown on the other to support an injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678; *Pleasant Hill Bayshore Disposal, Inc. v. Chip-It Recycling, Inc.* (2001) 91 Cal.App.4th 678, 696.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal.App.4th 1452, 1481.)

The Court is not inclined to grant the requested injunction. Fundamentally, Defendants' requested orders would not "preserve" the status quo, but effectively grant judgment in Defendants' favor. This runs contrary to the underlying policy of preliminary injunctions, which preserve the status quo. The Court first notes the nature of the injunction requested. "[T]he general rule is that an injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties." (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) The requested injunctive relief would effectively terminate Plaintiff. Thus, this is a mandatory injunction, as opposed to prohibitory, and it is subject to stricter standards. (See *Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 [such an injunction is subject to stricter review on appeal].) Moreover, courts are generally more "reluctant" to issue a mandatory injunction, even if they may be granted in proper cases. (*Allen v.*

Stowell (1905) 145 Cal. 666, 669.)

1. Likelihood of Prevailing on the Merits

In looking at the likelihood of prevailing on the merits, the moving party bears the burden of establishing a reasonable probability of success on the merits. (*Association for Los Angeles Dept Sheriffs v. County of Los Angeles* (2008) 166 Cal.App.4th 1625, 1634.) Injunction will not issue if it appears the plaintiff will not prevail. (*SB Liberty, LLC v. Isla Verde Ass'n, Inc.* (2013) 217 Cal.App.4th 272, 280.)

Here, Cross-Complainants' motion is without reference to the operative Complaint or Cross-Complaint. Their argument is premised largely on their contention that a Board of Directors terminated Rebiejo's services as server and supervisor effective December 22, 2025. The legal effect of such a termination on Plaintiff's derivative and individual claims is unclear as Defendants' argument is largely conclusory. (See Motion at § III(C)(1).) Furthermore, Rebiejo vigorously disputes the existence and authority of a Board of Directors. (Rebiejo Decl. at ¶ 7 ["Pete's has no board members. It is a limited liability company governed by its manager, and its Operating Agreement does not allow for the appointment of board members."].) Defendants and Cross-Complainants have not demonstrated a likelihood of prevailing on the merits.

2. Balancing of the Relative Harms

In deciding whether to issue the injunction, the Court must also evaluate "the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (*Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749.) "The ultimate goal of any test to be used in deciding whether a preliminary injunction should issue is to minimize the harm which an erroneous interim decision may cause. [Citation.]" (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Although the court has broad discretion, it has "no discretion to act capriciously." "It must exercise its discretion 'in favor of the party most likely to be injured.'" (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.)

"To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits." (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Irreparable harm is often related to the 'inadequate legal remedy' (i.e., the damages remedy is inadequate because some immeasurable harm is threatened).

Here, Defendants argue that "[e]vidence of severe harm to Pete's is abundant." (Motion at 12: 27.) However, Plaintiff Rebiejo has rebutted all of the factual allegations of Defendant Abbes' declaration with her own declaration testimony and evidence. Defendants and Cross-Complainants have not adduced evidence of "an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award." (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410 (internal citation omitted).) On the other hand, Plaintiff has attested that the harm to her would be significant. (Rebiejo Decl. at ¶ 29 ["I am a single mother and my sole source of income is from wages earned working at the Restaurant, along with occasional distributions from the Company."].)

Finally, the Court notes that a preliminary mandatory injunction is rarely granted; it is permitted only in extreme cases where the right to such relief is clearly established. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 625.) Defendants have not met their burden to establish their right to relief. The Motion is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

10. 9:00 AM CASE NUMBER: C25-02202
CASE NAME: ABIGAIL REED VS. ATRIA MANAGEMENT COMPANY LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ATRIA MANAGEMENT COMPANY LLC
TENTATIVE RULING:

Defendants filed this motion for an order compelling arbitration of plaintiffs' claims. Because the Court finds that a party to the arbitration agreement is also a party to a pending court action with a third party, arising out of the same transaction or series of related transactions, and there is a possibility of conflicting rulings on a common issue of law or fact, the motion to compel arbitration is **denied** pursuant to Code of Civil Procedure, § 1281.2 (c)-(d).

Background

Plaintiffs, Abigail Reed and Emma Reed, are the adult children and heirs of decedent, Kenneth Reed. They are also the Personal Representatives, and Executors of his estate. Prior to his death, Kenneth was a 76-year old resident of Atria Park of Lafayette, a residential care facility for the elderly, for just under three months. (FAC, ¶¶18-19.) Kenneth suffered from Parkinson's Disease, congestive heart failure, and other conditions causing him to be bed ridden and require significant assistance in daily activities. (FAC, ¶¶20-21.) Kenneth's wife, Susan (for clarity, the parties will be referred to by their first names. No disrespect is intended), signed admission documents on his behalf with respect to Kenneth's admission to the facility, including an arbitration agreement.

According to plaintiffs, Kenneth was admitted despite him being unable to perform all his activities of daily living without assistance, a "prohibited condition," which made him unqualified to stay and receive care at Atria Park. Plaintiffs allege Kenneth then suffered four falls between October 26th and November 18th. He was hospitalized after the November 18th fall and died on January 4, 2025.

Plaintiffs filed this action in August 2025 and, on September 18, 2025, they filed a First Amended Complaint, alleging causes of action for (1) elder abuse, (2) negligence, and (3) wrongful death.

Defendants now move to compel arbitration, arguing the agreement to arbitrate should be enforced because it is valid and enforceable, because it is not unconscionable, and because any enforceability issues must be determined by the arbitrator pursuant to the delegation clause. Defendants argue the FAA governs pursuant to the express terms of the agreement and, therefore, Code of Civil Procedure section 1281.2, subdivision (c) is preempted and the "only option" available is to compel arbitration.

The motion is supported by a declaration of the Community Business Director of Atria Park,

Grace Abueg, who states the company's general business practices with respect to arbitration agreements. Defendants also submit a declaration from their attorney Lindsey M. Romano ("Romano Decl."), who attaches a copy of the arbitration agreement as well as a durable power of attorney for decedent, both apparently signed by his wife and plaintiff, Susan Reed. The declaration also attaches a copy of plaintiffs' complaint.

Plaintiffs oppose the motion. Plaintiffs assert that the agreement is unconscionable. They do not deny that Susan signed an arbitration agreement, but argue instead that she signed in her representative capacity, not her personal capacity. They also point out neither plaintiff in this case signed the agreement, nor did Susan represent them in signing. As a result, plaintiffs contend their claims would not be subject to arbitration. Plaintiffs argue that proceeding to arbitration only to have to re-try the same issues in court could result in conflicting rulings of law and findings of fact, as well as duplication of efforts.

Defendants' reply does not distinguish between the wrongful death cause of action and the other claims. They argue the FAA preempts any discretion by the Court with respect to compelling arbitration versus other options the Court has under the California Code of Civil Procedure.

Standard

"A petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.) The moving parties bear the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez, supra*, 60 Cal.App.5th at 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; Code Civ. Proc. § 1281.)

Analysis

A. Existence of Agreement

Under state and federal state law, there is a public policy in favor of arbitration, but "[e]ven the strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement or who have not authorized anyone to act for them in executing such an agreement." (*Montemayor v. Ford Motor Co.* (2023) 92 Cal.App.5th 958, 967, citations omitted.)

Here, defendants provide no evidence of plaintiffs having viewed or acknowledged any arbitration agreement, let alone the one proffered. While defendants here have presented a document signed by Susan, on behalf of Kenneth, this does not address the claims of Kenneth's adult daughters. The agreement binds the "Parties," a defined term that only includes signatories ("Resident," "Responsible Party," and "Community"). (Romano Decl., Ex. 2, p. 56 of 67, first para.)

Binding case law exists on this point, at least with respect to wrongful death claims. Plaintiffs cite that case law and, while defendants fail to acknowledge it in their reply, the principle remains that "there is no basis to infer that [plaintiffs] waived their personal right to jury trial on the wrongful death claim." (*Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 474.) In fact, Shepardizing the aforementioned authority leads directly to another case involving at least one of the same parties as *this* case. That case notes, "parties can only be compelled to arbitrate when they have agreed to do so" and "[t]he arbitration agreement makes clear that it

applies only to disputes between the *parties* [...]" (*Maxwell v. Atria Management Co., LLC* (2024) 105 Cal.App.5th 230, 245, emphasis in original, internal citations omitted.)

Maxwell further quoted the agreement at issue in that case. The quotations suggest the agreement was substantially similar, if not exactly the agreement at issue here. (*Maxwell, supra*, 105 Cal.App.5th at 245.) Nonetheless, the court found "[t]he children's wrongful death claims are not derivative of [decedent's] causes of action, which are within the purview of the plain language in the arbitration agreement. In California, a wrongful death claim is personal and lies independent of survivor claims. (*Ibid.*)

Defendants have not met their burden to show the existence of an agreement to arbitrate the claims at issue here.

B. Application of the Federal Arbitration Act

Defendants assert the agreement here is governed by the Federal Arbitration Act (FAA) by its express terms and therefore, if any claim is arbitrable, the Court's discretion pursuant to Code of Civil Procedure, section 1281.2, subdivision (d), is limited or nonexistent.

Plaintiffs, for their part, advocate for the Court's exercise of discretion under that section.

When a motion to compel arbitration is filed in California state court, California's procedural provisions in the California Arbitration Act apply unless the arbitration agreement expressly provides that the parties have adopted the FAA procedural rules. (*Gallo v. Wood Ranch USA, Inc.* (2022) 81 Cal.App.5th 621, 644; *Espinoza v. Superior Court* (2022) 83 Cal.App.5th 761, 771, 775-778; *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 179.) (See also *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394 ["Our opinion does not preclude parties to an arbitration agreement to expressly designate that any arbitration proceeding should move forward under the FAA's procedural provisions rather than under state procedural law."].)

Here, the paragraph entitled "Governance" states that, "[a]ny claim or dispute asserted against Atria shall be resolved through submission to individual arbitration as governed by the Federal Arbitration Act, 9 U.S.C. Sections 1-16 ("FAA"), to the maximum extent permitted by law, and/or the Rules of Civil Procedure and Rules of Evidence governing the jurisdiction in which the Community is located." (See Romano Decl., Ex. 2, p. 56 of 67, last para., emphasis added.)

The clause is ambiguous at a minimum, explicitly incorporating the CCP, and the Court does not find that the above provisions (that the FAA will apply "to the maximum extent") means complete preemption of all procedural rules. (See *Maxwell, supra*, 105 Cal. App. 5th at 249.)

C. Enforceability

1. Delegation

Defendant asserts that it is the arbitrator who must decide whether the agreement is enforceable.

While challenges to the validity of the underlying contract are generally for the arbitrator to decide, challenges to the validity of the arbitration clause itself are generally resolved by the court in the first instance. (*Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1196-1197, citations omitted.) This is because the usual presumption is that a court, not an arbitrator, decides threshold issues of arbitrability such as whether the arbitration agreement itself is valid and enforceable. (*Id.* at 1197, citations omitted.) Parties may agree to delegate authority to the arbitrator to decide threshold issues, but given the contrary presumption, evidence that the parties intended such a delegation

must be “clear and unmistakable” before a court will enforce a delegation provision. (*Id.* at 1197, citations omitted.) “This is a heightened standard, higher than the evidentiary standard applicable to other matters of interpreting an arbitration agreement.” (*Ibid.*)

In *Maxwell* the First District Court of Appeals noted the trial court had concluded it was proper for the court to decide enforceability. The language in the agreement there “did not clearly and unmistakably delegate the issue to an arbitrator.” Because the appellants did not contest the conclusion there, the case is not authority for or against defendants’ contention that the delegation clause removes the Court’s authority to decide enforceability. The clause here is similar to the one in *Maxwell*, stating an arbitrator “will decide any question about whether a claim or dispute must be arbitrated under this Arbitration Clause to the maximum extent permitted by law.” (See *Maxwell, supra*, 105 Cal.App.5th at 240-241.)

Here, because the Court finds defendants fail to establish an agreement by plaintiffs to be bound, any delegation is not “clear and unmistakable.” (*Wilson-Davis v. SSP America, Inc.* (2021) 62 Cal.App.5th 1080, 1090 [discussing requirements of delegation clause].)

2. Unconscionability

Plaintiffs contend the arbitration agreement is unconscionable and therefore unenforceable. They bear the burden of proving unconscionability. Because the Court does not find an agreement, it is unnecessary to reach plaintiffs’ arguments in this regard.

Conclusion

Maxwell describes the effect of Code of Civil Procedure, section 1281.2 (c)-(d):

In light of our holding that the wrongful death claims are not arbitrable, we will consider whether section 1281.2(c) applies to these proceedings.

[...]

Generally speaking, a trial court will order parties to arbitrate a dispute “if it determines that an agreement to arbitrate the controversy exists.” (§ 1281.2, 1st par.) However, section 1281.2(c), allows a court to stay or refuse to compel arbitration of all or part of an arbitrable controversy when (1) “[a] party to the arbitration agreement is also a party to a pending court action ... with a third party, arising out of the same transaction or series of related transactions,” and (2) “there is a possibility of conflicting rulings on a common issue of law or fact.” As used in the statute, a “third party” is one who is neither bound by nor entitled to enforce the arbitration agreement. (*Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 612 [139 Cal. Rptr. 3d 114].) Thus, section 1281.2(c) “addresses the peculiar situation that arises when a controversy also affects claims by or against other parties not bound by the arbitration agreement.” (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 393 [25 Cal. Rptr. 3d 540, 107 P.3d 217] (*Cronus*).)

If the conditions set forth in section 1281.2 are satisfied, the statute “identifies four options from which the court may choose”: “(1) ... refuse to enforce the arbitration agreement and ... order intervention or joinder of all parties in a single action or special proceeding; (2) ... order intervention or joinder as to all or only certain issues; (3) ... order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) ... stay arbitration pending the outcome of the court action or special proceeding.” (*Williams, supra*, 24

Cal.App.5th at p. 1054; § 1281.2, subd. (d), 4th par.)

[...]

Since we have concluded that the children's wrongful death claims are not subject to the arbitration agreement, they are clearly third parties for purposes of section 1281.2(c).

(*Maxwell*, *supra*, 105 Cal.App.5th at 246-247.)

Because defendants here fail to show an arbitration agreement, at least with respect to the wrongful death claims, and because there is thus no delegation clause that would invoke the FAA with respect to those claims, the Court has discretion pursuant to section 1281.2(d) and it declines to enforce the arbitration clause.

Subdivision (c) is concerned with avoiding inconsistent outcomes and duplication of efforts. Here, defendants are parties to an arbitration agreement with Susan in her representative capacity for decedent Kenneth. Accordingly, the agreement might be capable of enforcement with respect to the elder abuse and negligence causes of action, but not with respect to the wrongful death. Defendants do not delve into these nuances, however. Instead the reply ignores the *Maxwell* case and other authority related to wrongful death claims.

The witnesses and evidence that would be presented in any arbitration of the elder abuse cause of action, assuming that arbitration could be compelled with respect to that aspect of the complaint, would very likely overlap with the witnesses and evidence presented at a trial on the wrongful death cause of action. This presents a significant risk of inconsistent findings of fact or conclusions of law.

Based on the *Maxwell* decision, and on the options available to this Court under Code of Civil Procedure, § 1281.2(d), the Court declines to enforce the arbitration agreement.

11. 9:00 AM CASE NUMBER: C25-02454
CASE NAME: SANDRA BELTRAN VS. MILTON HUEZO MARTINEZ
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: HUEZO MARTINEZ, MILTON R.
TENTATIVE RULING:

Defendant Milton Martinez's demurrer to the complaint is **overruled**. Defendant shall file and serve an answer within 10 days after notice of entry of the order.

Plaintiff Sandra Beltran filed this case for (1) quiet title based upon adverse possession and (2) declaratory relief. Plaintiff alleges that she and the Defendant hold title to a property in Richmond as joint tenants. (Comp. ¶13.) The title for the property shows that Plaintiff and Defendant each own 50% in the property as joint tenants pursuant to a grant deed executed on January 10, 2018. (Comp. ¶14.)

For the quiet title claim, Plaintiff is seeking 100% ownership of the property based upon adverse possession. Plaintiff alleges that since February 2018, she has "solely possessed, maintained, and invested substantially" in the property by paying the mortgage and property taxes, as well as capital improvements. (Comp. ¶18.) Plaintiff alleges she "has been in continuous possession during the

5-year period described in the preceding paragraphs, adverse to defendants and to all other persons, and notified defendants of the same". (Comp. ¶14.) Plaintiff alleges that her use has been "actual, open, hostile, continuous and exclusive possession under a claim of right founded upon a written instrument (i.e. the above-described Deed) and by way of improvement to the property". (Comp. ¶12.) For the declaratory relief claim, Plaintiff seeks a judicial declaration as the rights of the parties to the property. (Comp. ¶19.)

Defendant demurs to both causes of action based upon the failure to state facts sufficient to state a cause of action and on uncertainty. (Code of Civil Procedure section 430.10(e), (f).)

As to the quiet title claim, Defendant argues that it is uncertain because it combines two distinct causes of action: quiet title and adverse possession. A claim for quiet title based upon adverse possession is permitted. Code of Civil Procedure section 761.020 states what should be included in a quiet title complaint. Subsection (b) states in part that "[i]f the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession." (Code of Civil Procedure section 761.020(b); see also, *Dimmick v. Dimmick* (1962) 58 Cal.2d 417, 421.)

Defendant also argues that the parties are joint tenants and thus, Plaintiff's use was not hostile to Defendant's ownership. "The exclusive occupancy by a cotenant is deemed permissive; it does not become adverse until the tenant out of possession has had either actual or constructive notice that the possession of the cotenant is hostile to him." (*Dimmick, supra*, 58 Cal.2d at 422.) "Before title may be acquired by adverse possession as between cotenants, the occupying tenant must bring home or impart notice to the tenant out of possession, by acts of ownership of the most open, notorious and unequivocal character, that he intends to oust the latter of his interest in the common property. [Citations.] Such evidence must be stronger than that which would be required to establish a title by adverse possession in a stranger. [Citations.]" (*Hunter v. Schultz* (1966) 240 Cal.App.2d 24, 28.)

Here, Plaintiff has alleged that she "has been in continuous possession during the 5-year period described in the preceding paragraphs, adverse to defendants and to all other persons, *and notified defendants of the same*". (Comp. ¶14 (emphasis added).) The Court finds that these allegations are sufficient to allege that Plaintiff notified Defendant of her hostile use of the property such that an adverse possession claim could be viable. The demurrer to the quiet title claim is overruled.

As to the declaratory relief claim, Defendant argues that the claim is duplicative of the quiet title claim. Plaintiff argues that the declaratory relief claim is distinct from the quiet title claim. The Court agrees that the declaratory relief claim could provide relief beyond what is sought in the quiet title claim. The demurrer to the declaratory relief claim is overruled.

12. 9:00 AM CASE NUMBER: C25-02669
CASE NAME: CORINNE REES VS. SAMIR ROHAYEM
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: ROHAYEM, SAMIR

TENTATIVE RULING:

The motion of defendants Samir Royahem, Michel Reyahem and Zmoonos, LLC for judgment on the pleadings is **granted without leave to amend** as to the first, ninth, tenth, and eleventh causes of action, and **denied** as to the second, third, fourth, fifth, seventh causes of action and as to claims against Michel Rehayem. Plaintiff's request to file a second amended complaint asserting a cause of action for wrongful foreclosure is **denied**.

I. Background

Plaintiff Corinne Rees is decedent Gregory Schoepp's sister and trustee of his living trust. Defendants are Samir Rohayem, his brother Michel Rehayem, and ZMoonos LLC, a California LLC of which Rohayem and Rehayem are alleged members. The FAC alleges alter ego between the individual defendants and ZMoonos. (FAC, ¶¶ 4-13.)

Decedent was paraplegic from a gunshot wound sustained at age 18, and as a result he used a wheelchair until his death at 64, which classified him as a dependent adult under Welfare and Institutions Code section 15610.23. Defendants were allegedly aware of his physical limitations, compromised health, recent hospitalizations, use of psychiatric and pain medications, and ongoing suicidal ideations, which decedent had expressly communicated to them. (*Id.*, ¶¶ 16-17.)

In 2016 Rohayem through ZMoonos acquired a former bowling alley in Vallejo California, requiring extensive renovations, and decedent and Rohayem through ZMoonos entered into a commercial lease for three years with an option to purchase. On February 1, 2020, the parties executed a First Amendment extending the lease and granting decedent a new option to purchase at a staggered price culminating at approximately \$3,575,000, expiring January 1, 2024. On December 30, 2021, the parties executed a Second Amendment in response to vandalism damage, revising the option to purchase price to approximately \$2,825,000 if exercised between January 1 and December 31, 2022, and permitting ZMoonos to record two UCC-1 liens on a Trust business as security in the event decedent could not exercise the option. (*Id.*, ¶¶ 18-20.)

In or around August 2022, Rohayem orally offered to reduce the purchase price to \$2,000,000, which decedent accepted. By December 2022 decedent had invested over \$1,000,000 of his own funds and completed approximately fifty percent of required renovations, relying on the understanding that he would soon own the bowling alley. In or around January 2023, decedent and Rohayem orally agreed that decedent could exercise the option by either paying \$2,000,000 or, if unable, by transferring five real properties owned by the Trust to ZMoonos, secured by Performance Deeds of Trust. The five properties were located in Novato (two parcels), San Bruno, Cloverdale, and Santa Rosa. (*Id.*, ¶¶ 21-22.)

From January to around June 2023 decedent continued renovations and paid rent, believing he would acquire the bowling alley. During this period his mental health sharply declined. He suffered severe depression, expressed suicidal ideations to family and physicians, and was hospitalized in July 2023 for his second major surgery in under a year which affected his ability to make fully informed business

decisions. Decedent communicated his suicidal ideations to Rohayem, who allegedly disregarded and discredited his depressive state. While hospitalized, decedent was bedridden, unable to care for himself, administered psychiatric and pain medications, and continuously expressed a desire to end his life to family and physicians. (*Id.*, ¶¶ 23- 24.)

While decedent was in this compromised state, Rohayem visited him in the hospital and had him execute the Third Amendment to the commercial lease and the five PDOTs. Decedent was allegedly not given a reasonable opportunity to review these documents. Rohayem allegedly represented to decedent that signing the Third Amendment and PDOTs guaranteed his eventual ownership of the bowling alley, either by paying \$2,000,000 or by ZMoonos foreclosing on the real properties as previously agreed. Rohayem and Rehayem each separately secured additional debts of over \$100,000 against two other residential properties owned by decedent and foreclosed on those instruments after his death. (*Id.*, ¶ 25-27.)

On August 23, 2023, less than one month after executing the Third Amendment and PDOTs, decedent died by suicide while still hospitalized, having suffered severe pain and emotional harm prior to his death. (*Id.*, ¶ 28.)

Rather than transferring the bowling alley to decedent's estate or Trust as allegedly agreed, Rohayem through ZMoonos retained title and initiated nonjudicial foreclosure on the real properties. In or around March 2025 the bowling alley was sold for approximately \$1,200,000 and defendants kept the proceeds. On December 27, 2023, Rohayem as ZMoonos submitted a creditor's claim demanding satisfaction of a purported \$3,000,000 liability secured by the PDOTs. Plaintiff as trustee formally rejected this claim on June 18, 2024. Despite the rejection, defendants proceeded with nonjudicial foreclosure, completed between June and August 2024, transferring four of the five real properties to Rohayem as ZMoonos. The fifth property was sold to a third party with defendants retaining proceeds in excess of \$600,000. (*Id.*, ¶¶ 29-31.)

It was not until July 2025 that Rohayem disclosed to plaintiff that the Third Amendment and PDOTs were executed as consideration for decedent to obtain title to the bowling alley if he could not pay \$2,000,000, and plaintiff alleges she did not discover this agreement or its full impact until that disclosure. Plaintiff seeks economic, compensatory, special, and general damages, punitive damages, rescission of the PDOTs, imposition of a constructive trust over properties still held by defendants and proceeds from the bowling alley sale, pre-death pain and suffering damages, prejudgment interest, and attorney's fees and costs. (*Id.*, ¶ 33 and Prayer, Nos. 1-10.)

The FAC contains eleven causes of action. The first and second allege fraud based on negligent and intentional misrepresentation, both arising from Rohayem's alleged representation in July 2023 that decedent would receive the bowling alley in exchange for either \$2,000,000 or the real properties, which plaintiff contends was false because defendants never conveyed the bowling alley after decedent's death. (FAC, ¶¶ 34-50.) The third and fourth allege breach of oral and implied contract based on the same July 2023 agreement under which decedent provided the executed Third Amendment, PDOTs, and over \$1,000,000 in renovation work as consideration for the promise to

convey the bowling alley. (*Id.*, ¶¶ 52-68.) The fifth alleges promissory estoppel, contending defendants were unjustly enriched by retaining the bowling alley proceeds, four real properties through foreclosure, and over \$600,000 from the sale of the fifth property. (*Id.*, ¶¶ 70-78.) The sixth alleges financial dependent adult abuse under Welfare and Institutions Code section 15610.30, asserting defendants procured the PDOTs and Third Amendment through undue influence thereby depriving decedent of the right to make testamentary dispositions of his property. (*Id.*, ¶¶ 80-87.) The seventh and eighth seek rescission of the PDOTs based on fraud and undue influence respectively, and the imposition of a constructive trust. (*Id.*, ¶¶ 88-108.) The ninth, tenth, and eleventh causes of action are for negligence, intentional infliction of emotional distress, and wrongful death arising from defendant's visit to the hospital and procurement of documents from decedent while he was in a compromised state and experiencing suicidal ideation. (*Id.*, ¶¶ 109-122.)

On January 29, 2026, the court granted plaintiff's motion for trial preference, setting the matter for jury trial on April 6, 2026, with an issue conference on March 20, 2026.

On February 10, 2026, defendants filed this motion for judgment on the pleadings in which they argue that nine of the eleven causes of action alleged in the FAC fail as a matter of law. Defendants further argue that all claims against Michel Rehayem should be dismissed.

Plaintiff filed an opposition on March 6, 2026, concurrently with a motion for leave to file a Second Amended Complaint, which obtained a hearing date of May 28, 2026. Because that hearing date fell after the preferential trial date, plaintiff filed an ex parte application to advance the hearing on the motion to amend, which the court denied.

II. Legal Standard

A motion for judgment on the pleadings “performs the same function as a general demurrer and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064; see *Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452.)

III. Requests for Judicial Notice

Defendants' unopposed request for judicial notice of Exhibits 1 through 12 is granted. The court takes judicial notice of the existence and content of these documents though not of disputed or disputable facts stated therein. The request for judicial notice of Exhibit 13 is denied. The exhibit consists of an unfiled complaint which is not subject to judicial notice under Evidence Code section 452(d), as well as deeds of reconveyance whose relevance to the motion is not clear.

Plaintiff's unopposed request for judicial notice of Exhibits A through H is granted. Exhibits A through C are records of the Marin County Superior Court and are judicially noticeable under Evidence Code section 452(d). They establish the notice to creditors filed November 13, 2023, the creditor's claim filed by ZMoonos on January 2, 2024, and the rejection of that claim filed June 18, 2024. Exhibits D through H are notices of trustee's sale recorded in the official records Marin, San Mateo, and Sonoma counties and are judicially noticeable. (See Evid. Code § 452(c), (h); *Yvanova v. New Century Mortg.*

Corp. (2016) 62 Cal.4th 919, 924 fn.1.) The court takes judicial notice of the existence and content of these documents though not of disputed or disputable facts stated therein.

IV. Analysis

A. The First Cause of Action for Negligent Misrepresentation

Defendants argue the first cause of action fails because the alleged representation, that defendants would convey the bowling alley in exchange for \$2,000,000 or the real properties, is a promise of future performance rather than a statement of existing fact, and California does not recognize a cause of action for negligent false promise. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 159.)

Tarmann states: "To maintain an action for deceit based on a false promise, one must specifically allege and prove, among other things, that the promisor did not intend to perform at the time he or she made the promise and that it was intended to deceive or induce the promisee to do or not do a particular thing. Given this requirement, an action based on a false promise is simply a type of intentional misrepresentation, i.e., actual fraud. The specific intent requirement also precludes pleading a false promise claim as a negligent misrepresentation, i.e., 'The assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true.' (Civ. Code, § 1710, subd. (2).) Simply put, making a promise with an honest but unreasonable intent to perform is wholly different from making one with no intent to perform and, therefore, does not constitute a false promise. Moreover, we decline to establish a new type of actionable deceit: the negligent false promise." (*Tarmann, supra*, 2 Cal.App.4th at pp. 158-159.)

Paragraph 35 of the FAC alleges that Rohayem misrepresented the material facts of decedent's option to purchase, specifically that decedent would receive the bowling alley in exchange for either \$2,000,000 or the real properties. Paragraph 36 alleges the representation was false because defendants never transferred the bowling alley after decedent's death when he was unable to pay the \$2,000,000. Under *Tarmann*, a false promise to perform cannot support a cause of action for negligent misrepresentation.

The motion is granted as to the first cause of action.

B. The Second Cause of Action for Intentional Misrepresentation and Seventh Cause of Action for Rescission

Defendants contend that, when alleged fraud is based on an agreement, mere non-performance is insufficient to establish a claim for fraud. "A promise of future conduct is actionable as fraud only if made without a present intent to perform . . . something more than nonperformance is required to prove the defendant's intent not to perform his promise. . . . '[I]f plaintiff adduces no further evidence of fraudulent intent than proof of nonperformance of an oral promise, he will never reach a jury.'" (*Magpali v. Farmers Grp., Inc.* (1996) 48 Cal.App.4th 471, 480-481 [promise not to interfere with plaintiff's business was true when made, as evidenced by its being kept for many years, and so not

basis for fraud, even though subsequent events caused defendant to interfere].)

The FAC alleges the following facts in support of the intentional misrepresentation claim. In or around July 2023 Rohayem misrepresented to decedent the material terms of the option to purchase, that decedent would receive the bowling alley in exchange for either \$2,000,000 or the real properties. (FAC ¶ 44.) This representation was made while decedent was admitted to the hospital for his second surgery in under a year, confined to a bed, experiencing severe depression and suicidal ideations, and being administered various psychiatric and pain medications. (*Id.*, ¶ 45.) Rohayem knew or had reason to know the representation was false because defendants never transferred the bowling alley to decedent's estate or the Trust after his death when he was unable to pay the \$2,000,000. (*Id.*, ¶ 46.) Rohayem deliberately misrepresented the material terms of the option to purchase to induce decedent to sign the Third Amendment and the PDOTs, thereby providing ZMoonos with control over the disposition of the real properties. (*Id.*, ¶ 47.) Decedent relied to his detriment by signing the Third Amendment and the PDOTs. (FAC, ¶ 48.) Defendants' conduct was willful, oppressive, fraudulent, reckless, and malicious, done without legal justification, and defendants intended to benefit in conscious disregard of plaintiff's rights. (FAC ¶ 51.)

Intent to defraud can be based upon reasonable inferences. (*Miller v. National American Life Ins. Co.* (1976) 54 Cal. App. 3d 331, 338.) Here, the FAC's allegations are sufficient to support the second cause of action. Paragraph 47 alleges that Rohayem deliberately misrepresented the material terms to induce decedent to sign, and a deliberate misrepresentation made to induce action is not a promise made with honest intent to perform. The circumstances under which the representation was made (visiting decedent in the hospital while he was bedridden, medicated, severely depressed, and experiencing suicidal ideations, and procuring his signature on documents encumbering five Trust properties) are circumstances from which a jury could find that the promise was made without the present intention to perform.

Defendants additionally argue that the intentional misrepresentation claim will fail because the FAC identifies Rohayem's July 2025 deposition testimony as the sole evidentiary basis for the claim. The court does not find this argument to be persuasive. The FAC does identify Rohayem's July 2025 deposition testimony as the source of plaintiff's discovery of the agreement at paragraph 32, but that paragraph is the delayed discovery allegation, not an identification of the sole evidentiary basis for the fraud cause of action.

The motion is denied as to the second cause of action and the derivative seventh cause of action.

C. The Third, Fourth and Fifth Causes of Action

Defendants argue that the third, fourth, and fifth causes of action for breach of oral contract, breach of implied contract, and promissory estoppel are barred by the statute of frauds under Civil Code section 1624.

"The statute of frauds provides that any agreement for 'the sale of real property, or of an interest therein' is invalid unless it is 'in writing, subscribed by the party sought to be charged.' (Civ. Code, §

1624, subd. (a)(3).)" (*Smyth v. Berman* (2019) 31 Cal.App.5th 183, 197.) "In California an option to purchase real property has been held to come within the statute of frauds and so must be in writing." (*Pacific Southwest Development Corp. v. Western Pacific Railroad Co.* (1956) 47 Cal.2d 62, 66.)

The oral agreement alleged here falls within the statute of frauds. The motion is nevertheless denied because the FAC alleges sufficient facts to support the part performance and equitable estoppel exceptions to the statute.

"The doctrine of part performance by the purchaser is a well-recognized exception to the statute of frauds as applied to contracts for the sale or lease of real property." (*Sutton v. Warner* (1993) 12 Cal.App.4th 415, 422.) Either partial payment of the purchase price or the making of substantial improvements on the property will satisfy it. (*Ibid.*) The relevant acts must unequivocally refer to the contract or clearly relate to its terms. (*In re Marriage of Benson* (2005) 36 Cal.4th 1096, 1109.) The FAC alleges that decedent invested over \$1,000,000 of his own funds in renovations to the bowling alley and completed approximately fifty percent of the required work in reliance on the oral agreement that he would acquire the property. (FAC ¶¶ 21, 56.) That allegation satisfies the part performance exception. The FAC further alleges that decedent executed five Performance Deeds of Trust encumbering Trust real properties as the agreed alternative consideration for the purchase, acts that are inexplicable except by reference to the oral purchase agreement. (FAC ¶¶ 22, 25, 54.) These allegations are sufficient to plead part performance.

A party may also be estopped from asserting the statute of frauds as a defense to a contract in order to "prevent fraud that would result from refusal to enforce [an] oral contract[]." (*Monarco v. Lo Greco* (1950) 35 Cal.2d 621, 623–624.) Before estoppel applies, the party so pleading must allege that refusal to enforce the oral contract will result in (1) "unconscionable injury" because the party pleading estoppel "seriously ... change[d] [its] position in reliance on the [oral] contract," or (2) the "unjust enrichment" of the party pleading the statute of frauds as a defense because that party "received the benefits of the other's performance." (*Monarco*, at pp. 623–624; see also, *Tenzer v. Superscope* (1985) 39 Cal.3d 18, 27.)

Both conditions are met on the face of the FAC. Plaintiff alleges the decedent changed his position in reliance on the oral agreement by expending over \$1,000,000 in improvements and encumbering five Trust properties. (FAC, ¶¶ 21, 22, 25.) Defendants, having accepted the benefit of those encumbrances, then used the PDOTs to foreclose on four properties and retain over \$600,000 in proceeds from the sale of the fifth, while also retaining the bowling alley and its approximately \$1,200,000 sale proceeds. (*Id.*, ¶¶ 29-31.)

The motion is denied as to the third, fourth, and fifth causes of action.

D. The Ninth, Tenth and Eleventh Causes of Action

The ninth, tenth, and eleventh causes of action for negligence, intentional infliction of emotional distress, and wrongful death all based on allegation that defendants visited decedent in the hospital while knowing he was in a medicated and emotionally vulnerable state, presented him with

documents doubling his liability and securing it against his real properties, and that this conduct caused the decedent's death by suicide.

Defendants argue the claims fail because California law imposes no duty to prevent self-harm absent a special relationship, and that the relationship alleged here does not give rise to such a duty. Defendants further argue that the conduct alleged does not rise to the level of extreme and outrageous conduct required to state a claim for intentional infliction of emotional distress.

Generally, one is ordinarily not liable for the actions of another and is under no duty to protect another from harming himself or herself, "in the absence of a special relationship of custody or control." (*Nally v. Grace Community Church* (1988) 47 Cal.3d 278, 293.) For instance, a duty to prevent a person from harming him or herself, such as suicide, exists "only when a special relationship existed between the suicidal individual and the defendant or its agents." (*Ibid.*) In this context, a special relationship is one in which the "plaintiff is particularly vulnerable and dependent on the defendant, who, correspondingly, has some control over the plaintiff's welfare." (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 893.)

Here, plaintiff does not allege facts showing that decedent was dependent on defendants or that they had any control over his welfare. A commercial landlord and business associate does not stand in the kind of custodial, therapeutic, or supervisory relationship that California courts have recognized as giving rise to an affirmative duty to prevent self-harm. Absent a legally cognizable duty, the negligence and wrongful death claims fail as a matter of law. The intentional infliction of emotional distress claim fails because presenting business documents in the context of an ongoing commercial relationship, however troubling the circumstances, does not constitute conduct so extreme as to exceed all bounds tolerated in a civilized community and plaintiff does not sufficiently allege that defendants engaged in outrageous conduct that caused the decedent to harm himself. (*Nally v. Grace Community Church*, *supra*, 47 Cal.3d at pp. 300-301.)

Plaintiff's opposition concedes that the motion may be granted as to these claims, stating that the proposed Second Amended Complaint submitted with the opposition omits them, and plaintiff agrees to their dismissal.

The motion is granted as to the ninth, tenth, and eleventh causes of action without leave to amend. However, as discussed below, the court denies plaintiff's request to file an amended complaint.

E. Motion as to Michel Rehayem

Defendants argue that judgment on the pleadings should be granted in favor of defendant Michel Rehayem as to all causes of action because the FAC does not allege that he made any representation, entered into any agreement with Decedent, visited Decedent in the hospital, procured any documents, or otherwise engaged in conduct giving rise to liability. Instead, Plaintiff relies on generalized allegations that Rehayem is an alter ego of the other defendants.

Two factors must be shown before an individual will be held liable for the actions of the corporation under an alter ego theory: "(1) that there be such unity of interest and ownership that the separate

personalities of the corporation and the individual no longer exist and (2) that, if the acts are treated as those of the corporation alone, an inequitable result will follow.” (*Automotriz Del Golfo De California S. A. De C. V. v. Resnick* (1957) 47 Cal.2d 792, 796.) Factors courts consider in determining whether the first factor is met include commingling of personal and corporate funds and assets, diversion of corporate assets or funds to personal use, treatment of corporate assets as personal assets, sole ownership of the corporation by one individual, absence of corporate assets, gross undercapitalization, and disregard of corporate formalities. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 417-418.) “No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied.” [Citation.]” (*Shaoxing County Huayue Import & Export v. Bhaumik* (2011) 191 Cal.App.4th 1189, 1198.)

To allege alter ego, a plaintiff is required to allege only “ultimate facts, rather than evidentiary facts.” (*Rutherford Holdings, LLC v. Plaza del Rey* (2014) 223 Cal.App.4th 221, 236). “Moreover, less particularity of pleading is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff,” (*id.*), which is true with alter ego allegations.

The FAC alleges that Rohayem and Rehayem are both members of ZMoonos, are its alter egos with a unity of interest and ownership such that any individuality or separateness between them has ceased, that ZMoonos is a mere shell and instrumentality through which they carried on their business exactly as they would have had no entity existed, that they commingled their assets with ZMoonos, controlled its finances entirely, and treated its assets as their own, and that adherence to the fiction of ZMoonos's separate existence would sanction fraud, promote injustice, and produce an inequitable result by permitting Rohayem and Rehayem to escape liability. (FAC, ¶¶ 9-13; see also, ¶14 [alleging liability based on a joint enterprise].)

These allegations are sufficient to state a basis for alter ego liability. Whether plaintiff can prove either theory is a question for trial. The motion by Defendant Michel Rehayem is therefore denied.

F. Plaintiff’s Request to File a Second Amended Complaint

Plaintiff seeks leave to add a cause of action for wrongful foreclosure premised on the theory that defendants' voluntary election into the optional trust claims procedure under Probate Code section 19255, followed by their failure to file an action within 90 days of plaintiff's rejection of the creditor's claim, irrevocably extinguished both the underlying debt and the PDOTs as security instruments, rendering the subsequent nonjudicial foreclosures void.

Specifically, Plaintiff argues that defendants are barred from asserting the underlying debt exists because they elected into the trust claims procedure, plaintiff rejected their creditor's claim on June 18, 2024, and defendants did not file a court action within 90 days. Probate Code section 19253(d) states “Notwithstanding the statute of limitations otherwise applicable to a claim, if an action on a rejected claim is not commenced. . . within the time prescribed in Section 19255, it is ‘forever barred’.” (*Id.*, § 19255; *Dobler v. Arluk Medical Center Industrial Group, Inc.* (2001) 89 Cal.App.4th 530,

536.)

Plaintiff asserts that instead of litigating the merits of the alleged bowling alley debt underlying their creditors claim in the Optional Trust Claims Procedure, Defendants initiated non-judicial foreclosure proceedings after its claim was rejected by the Trustee. (Plf.'s RJN Exs. A-H and FAC, ¶¶ 30-31.) On this basis, Plaintiff seeks leave to amend their complaint to assert a cause of action for wrongful foreclosure.

Although defendants did not file a reply brief on the motion for judgment on the pleadings, which left plaintiff's opposition arguments on the wrongful foreclosure theory without a direct response in the context of this motion, defendants addressed the theory in their opposition to plaintiff's ex parte application to advance the hearing on the motion for leave to amend. In that opposition defendants argue that the wrongful foreclosure claim fails as a matter of law on two grounds. First, a nonjudicial trustee's sale conducted under a contractual power of sale is not an action within the meaning of Probate Code section 19253, so the bar on the judicial remedy does not reach the power of sale. Second, caselaw holds that even where a judicial remedy on a debt is barred by statute, the trustee's contractual power of sale is not extinguished. Defendants also note that the Marin County Probate Department allowed the foreclosures to proceed despite plaintiff's repeated attempts to enjoin them on this same theory, though they do not argue that those rulings have any preclusive effect here.

A trustee under a deed of trust who seeks to conduct a nonjudicial foreclosure is not required to bring a creditor's claim in the probate court or file a written notice waiving recourse against other estate property under section 9391. (*Cosentino v. Coastal Construction Co.* (1994) 30 Cal.App.4th 1712, 1715-1716.) Instead, the mortgagee forecloses under the power of sale in the deed of trust, no complaint is filed to enforce the obligation, and exercise of a power of sale is not an "action" under the Probate Code. (*Id.* at p. 1715.) *Cosentino* establishes that a secured creditor who fails to file a claim is not barred from exercising the power of sale, its recourse is simply limited to the security. Under *Cosentino*, a secured creditor who never files a claim retains the power of sale. It would be strange to hold that a creditor who does file a claim and fails to pursue its rejection is worse off than one who never participated at all.

Plaintiff contends that the bar extinguished the PDOTs as security instruments by operation of Civil Code sections 2909 and 2911. Civil Code section 2909 states that a lien is accessory to the obligation it secures, and plaintiff argues the PDOTs rose and fell with the underlying debt. Because Civil Code section 2911 provides that a lien is extinguished by the lapse of time within which an action can be brought on the principal obligation, plaintiff argues the PDOTs were extinguished once the debt was barred under the Probate Code.

Civil Code sections 2909 and 2911 address the right to bring a civil action to foreclose a deed of trust judicially. They do not address the nonjudicial power of sale. *Nicolopoulos v. Superior Court* (2003) 106 Cal.App.4th 304, held that while a civil action to foreclose a deed of trust may be barred under section 2911, nonjudicial foreclosure proceedings under a power of sale are not. (*Id.* at 309-310; see also, *Trenk v. Soheili* (2020) 58 Cal. App. 5th 1033, 1041 [where a trust deed is involved, section 2911

applies only to the lien that is “enforceable through judicial foreclosure, and not the power of sale.”].)

Plaintiff's election of remedies argument does not persuade the court that a wrongful foreclosure claim is viable. Plaintiff's cited cases, *Holt Manufacturing Co. v. Ewing* (1895) 109 Cal. 353 and *Smith v. Greenfield State Bank* (1963) 222 Cal.App.2d 869 (coincidentally both involving harvesters), arose from conditional sales contracts where the seller retained title until the purchase price was fully paid. Upon the buyer's default and death, the seller faced two mutually exclusive remedies: repossess the goods on the theory that title never passed or file a probate claim for the purchase price on the theory that the sale was absolute. In *Holt* the seller filed a claim for the purchase price and then sought to repossess the harvester, and the Court held it was bound by its election. (*Holt, supra*, 109 Cal. at pp. 356-357.) In *Smith* the bank repossessed the harvester and two days later filed a creditor's claim for the full purchase price, and the court held the filing of the claim passed title to the estate, making retention of the harvester conversion. (*Smith, supra*, 222 Cal.App.2d at pp. 871-872.) As *Smith* recognized, the election of remedies doctrine "bars only inconsistent remedies, but where remedies are concurrent and consistent, a party may pursue one or all of them until satisfaction is had." (*Id.* at p. 871.) Defendants are not asserting contradictory positions. They are not claiming both that the Trust owes the debt and that they retain ownership of the secured properties.

Plaintiff argues “the subsequent decision of *Spears v. Spears* (2023) 97 Cal.App.5th 1294 is in accord” with *Holt* and *Smith* because “[t]he *Spears* court held that when a trustee does not elect the optional procedure, a creditor may sue the trust directly without first proceeding against a probate estate.” (Opp. 5:19-21.) Plaintiff argues “[t]he inverse implication of the *Spears* decision is exactly the policy embodied in the *Holt* decision. By submitting to the Section 19000 process, the Defendants accepted a specific statutory bargain. Having failed to litigate the rejection within the 90-day window prescribed by Section 19255, they cannot then ‘detour’ back to a non-judicial process.” (*Id.*, 5:22-25.)

Spears addressed whether a creditor could sue a trust directly when no probate has been opened and the trustee had not invoked the optional claims cutoff procedure in Probate Code sections 19000-19403 and held that direct suits are available in those circumstances. *Spears* is cited for the proposition that when a creditor invokes the claims procedure and then fails to pursue a rejected claim, it forfeits the power of sale under a deed of trust. However, the inverse implication plaintiff draws is not supported by the opinion.

The authorities establish that a secured lender can foreclose nonjudicially outside of the probate process, and nothing in plaintiff's briefing persuades the court that defendants waived that right or were bound to pursue the judicial remedy prescribed by the Probate Code after their claim was rejected. Leave to amend the complaint is denied because the court finds that the proposed amendment would be futile. (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230 [the trial court has discretion to deny leave where a proposed amendment fails to state a valid cause of action, and the defect cannot be cured].)

V. Disposition

Based on the foregoing, the motion for judgment on the pleadings is granted without leave to amend

as to the first, ninth, tenth, and eleventh causes of action, and denied as to the second, third, fourth, fifth, and seventh causes of action, and as to claims against Michel Rehayem. Plaintiff's request to file an amended complaint asserting a cause of action for wrongful foreclosure is denied.

13. 9:00 AM CASE NUMBER: MSC21-00076
CASE NAME: VALDIVA VS. AYALA
***HEARING ON MOTION IN RE: ENTRY OF FINAL JUDGMENT**
FILED BY: VALDIVIA, ADRIANA
TENTATIVE RULING:

The Court continues the hearing on this motion to April 2, 2026 at 9:00 a.m.

14. 9:00 AM CASE NUMBER: N25-2407
CASE NAME: PETITION OF: CITY OF CONCORD
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CITY OF CONCORD
TENTATIVE RULING:

Before the Court is an amended petition to compel arbitration and to consolidate separate arbitration proceedings ("Amended Petition"), filed by the City of Concord.

For the reasons set forth below, the Court's tentative ruling is to DENY the Amended Petition.

Background

Petitioner the City of Concord ("Petitioner") employs employees represented by the respondent Concord Police Association ("Respondent"). (Amended Petition, ¶ 1.) Respondent represents all full-time police officers and sergeants on all matters pertaining to their wages, hours and conditions of employment. (*Id.*, at ¶ 2.) Officer One is a former Concord police officer and Officer Two is a former Concord police officer. (*Id.*, at ¶¶ 3, 4.) A Memorandum of Understanding ("MOU") governs the relationship of Petitioner and Respondent. (*Id.*, at ¶ 5.)

Officer One was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 8.) Consistent with MOU section 17.11.6, the parties selected an arbitrator ("Arbitrator One") and commenced arbitration in person with Arbitrator One. (*Id.*, at ¶ 9.) Following two days of hearing, Arbitrator One recused himself. (*Ibid.*) The parties made some offers to one another relating to how to proceed subsequent to Arbitrator One's recusal in the arbitration for Officer One but did not come to any agreement. (*Id.*, at ¶¶ 10-11.) Petitioner asserts that it wants to hold a consolidated arbitration for Officer One and Officer Two with a newly selected arbitrator and represents that Officer One is now refusing to arbitrate Officer One's termination. (*Id.*, at ¶ 11.)

Officer Two was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 13.) Consistent with MOU section 17.11.6, the parties selected an arbitrator ("Arbitrator Two") with an arbitration scheduled to take place via videoconference. (*Id.*, at ¶ 14.) Petitioner asserts that Arbitrator Two previously served as an

arbitrator in a discipline case involving Petitioner and Respondent and ruled against Petitioner after finding one of Petitioner's witnesses was not credible. (*Id.*, at ¶ 17.) Petitioner is concerned because it asserts that the same witness is a key witness for the arbitrations of Officer One and Officer Two. (*Ibid.*) Petitioner asserts that because of health reasons, Arbitrator Two cannot hold an in-person hearing, and that despite Petitioner initially agreeing to conduct the hearing virtually, it no longer wishes to proceed in that manner. (*Id.*, at ¶ 18.)

Petitioner filed the instant Petition on December 10, 2025. Respondent filed an opposition on March 9, 2026. Petitioner filed a reply on March 12, 2026.

Legal Standard

"Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) California law determines the answer to this threshold question. (*Ibid.*) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid.*, see also Civ. Code, §§ 1550, 1580, 1565.)

"Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. (*Ibid.*; see also *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, (2012) 55 Cal.4th 223, 236.)

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)

Analysis

The Court begins with this basic proposition: "In view of the strong public policy in favor of arbitration as a means of resolving disputes, the courts have consistently limited judicial interference to the minimum consistent with due process, fundamental fairness, and applicable statutory law in order to promote as much as possible the finality and conclusiveness of awards in arbitration." (*City of Oakland v. United Public Employees* (1986) 179 Cal.App.3d 356, 363.)

First Claim for Relief – Compelling Arbitration of Officer One

Petitioner asserts that Officer One was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 8.) Consistent with MOU section 17.11.6, the parties selected an arbitrator and commenced arbitration in person with Arbitrator One. (*Id.*, at ¶ 9.) Following two days of hearing, Arbitrator One recused himself. (*Ibid.*)

Petitioner argues that the Court should order Respondent to arbitrate the matters of Officer One and Officer Two because the parties are subject to a mandatory arbitration provision and none of the enforceability exceptions exist.. (MPA ISO Amended Petition, pp. 4-5.) Respondent argues that Petitioner has failed to join the officers as indispensable parties and that the Petition should be

denied because it is the City that is refusing to arbitrate as required by the MOU, as Respondent states the parties have already agreed to hear the arbitrations before specified arbitrators selected using the MOU. (Opposition, pp. 5-6.) On Reply, Petitioner argues that the Court should disregard the late filed Opposition. (Reply, pp. 2-4.)

The Court will consider the Opposition filed by Respondent because Petitioner has neither argued nor shown prejudice. (Reply, pp. 2-4; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 847 [“Courts have long acknowledged that the trial court may consider untimely filed and served response papers, when no prejudice to the petitioner is shown, without an order extending the 10-day time period of section 1290.6.”].) Respondent’s objection to the Reply is overruled.

The Court notes that the Petition here does not ask the Court to compel arbitration but rather asks this Court to issue a ruling modifying an already pending arbitration. Officer One has agreed to arbitrate and initiated the arbitration process, and an arbitrator and back up arbitrator has been selected. The arbitration even proceeded for two days before the arbitrator withdrew or recused himself. (Amended Petition, ¶¶ 3-11.)

The MOU provides a clear directive on how arbitrators are to be selected, and this involves each side vetoing an arbitrator from a list of ten names, one at a time, down to one name, with the last name left being the arbitrator. (Petition, Exhibit A, MOU, § 17.11.6.) The party who gets to veto first is decided by a coin toss. (*Ibid.*) “The next to last name stricken shall be the alternate arbitrator to serve in the event the first arbitrator is not available.” (*Ibid.*) For Officer One’s arbitration, the initial arbitrator recused or withdrew from the case. At this point, it is unclear why Petitioner and Respondent are not moving forward with the arbitration of Officer One with the alternate arbitrator now that the first arbitrator is no longer available due to recusal or withdrawal, which is what the arbitration agreement appears to require. Whether or not to start the arbitration anew or continue where the prior one left off would be a decision to be posed to the alternate arbitrator. Because the Court has no authority to compel an arbitration where one is already pending, the Court **DENIES** Petitioner’s first claim for relief, which requests the Court to compel the arbitration of Officer One.

Second Claim for Relief – Compelling Arbitration of Officer Two

Officer Two was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 13.) Consistent with MOU section 17.11.6, the parties selected an arbitrator (“Arbitrator Two”) with an arbitration scheduled to take place via videoconference. (*Id.*, at ¶ 14.) The issue here is similar to the situation for Officer One, in that the Court notes that the Petition is not asking the Court to compel arbitration, but rather asks this Court to issue a ruling modifying an already pending arbitration. Officer Two has agreed to arbitrate, and even initiated the arbitration process, and an arbitrator and back up arbitrator has been selected. (Amended Petition, ¶¶ 3-6, 12-18.) An arbitration date has even been selected. (*Ibid.*) Here, as noted above, the Court has no authority to compel an arbitration where one is already pending. Thus, the Court **DENIES** Petitioner’s second claim for relief, which requests the Court to compel the arbitration of Officer Two.

Third Claim for Relief – Consolidating Arbitrations of Officer One and Officer Two

Petitioner asks the Court to consolidate the arbitrations of Officer One and Officer Two. (Amended

Petition, ¶¶ 19-20; MPA ISO Amended Petition, p. 7.) Respondent argues that the arbitrations should not be consolidated because they do not involve the same parties, there is insufficient information concerning their commonality of facts, and that merging the two arbitrations would force each officer to expose their confidential personnel file materials to each other in violation of Penal Code section 832.7. (Opposition, p. 11.)

Code of Civil Procedure section 1281.3, provides that “[a] party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when: (1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and (2) The disputes arise from the same transactions or series of related transactions; and (3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.” The statute also provides that “[t]he court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings. . . .” (Code Civ. Proc., § 1281.3.)

Here, Petitioner argues that both arbitration matters involve the same parties to the same MOU, and that both officers were “terminated from their employment for similar allegations of misconduct, so the second prong has been met.” (MPA ISO Amended Petition, p. 7:13-14.) Notably, the similarity of the allegations are not addressed in the declaration of Arcelia Hurtado in support of the Amended Petition. (Hurtado Decl. ISO Amended Petition, ¶¶ 1-11.) The Court finds that Petitioner has not shown satisfaction of the three requisite elements for consolidation in that Petitioner does not even contend that the disputes arise from the same transactions or series of related transactions—as being terminated for similar allegations of misconduct is not the same as the disputes arising from the same transaction or series or related transactions. Terminations are fact-specific inquiries and the same grounds for termination can play out extremely differently for different employees. The Court **DENIES** Petitioner’s request to consolidate the arbitration proceedings of Officer One and Officer Two.

Petitioner’s Request for Disqualification of Arbitrator 2

Petitioner asks the Court to disqualify Arbitrator Two pursuant to Code of Civil Procedure section 1281.9(a)(1), because it contends that Arbitrator Two “cannot be impartial to the City.” (MPA ISO Amended Petition, p. 8:18.) This is because Arbitrator Two “has previously issued an arbitration decision finding that one of the City’s main witnesses in [the arbitrations of Officer One and Officer Two] . . . had been impeached, and his testimony could not be trusted due to intentional dishonesty.” (*Id.*, at p. 8:18-25.)

“In any arbitration pursuant to an arbitration agreement, when a person is to serve as a neutral arbitrator, the proposed neutral arbitrator shall disclose all matters that could cause a person aware of the facts to reasonably entertain a doubt that the proposed neutral arbitrator would be able to be impartial, including all of the following: (1) The existence of any ground specified in Section 170.1 for disqualification of a judge. (Code Civ. Proc., § 1281.9.)

The Court finds that the Hurtado Declaration is insufficient to show that Arbitrator Two cannot be impartial towards the City. (Hurtado Decl., ¶ 10.) A neutral arbitrator having assessed the credibility of a witness is not indication of lack of impartiality to that witness’s employer. It is therefore

insufficient here for the Court to disqualify Arbitrator Two based on the record currently before the Court. The Court **DENIES** Petitioner's request to disqualify Arbitrator Two.

Ruling

For the reasons discussed above, the Court **DENIES** the Amended Petition to Compel Arbitration and to Consolidate Separate Arbitration Proceedings.